

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KOWAN TURNER,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. EDGARDO BARBOT,
Shield No. 1602, Individually and in his Official Capacity,
P.O. ALIRO PELLERANO, Shield No. 6108, Individually
and in his Official Capacity, P.O. MICHAEL
POMERANTZ, Shield No. 10568, Individually and in his
Official Capacity, and P.O. DAMON VALENTINO, Tax Id.
No. 935896, Individually and in his Official Capacity, and
POLICE OFFICERS "JOHN DOE" #1-10, Individually and
in their Official Capacity (the name John Doe being
fictitious, as the true names are presently unknown),

Defendants.

SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx County as
the place of trial.

The basis of venue is:
Plaintiff's Residence

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
November 20, 2015

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

DET. EDGARDO BARBOT
Shield No. 1602
Firearm Suppression Unit
c/o Organized Crime and Control
1 Police Plaza - 13th Fl.
New York, NY 10007

P.O. ALIRO PELLERANO
Shield No. 6108
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457

P.O. MICHAEL POMERANTZ
Shield No. 10568
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457

P.O. DAMON VALENTINO (ret.)
Tax Id. No. 935896

~~Last Known Address - Currently Unknown~~

~~BRONX Court Section
215 E. 161st St.~~

~~BRONX, NY 10457~~

~~ATTN: NYPD Admin Office~~

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
KOWAN TURNER,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. EDGARDO
BARBOT, Shield No. 1602, Individually and in his
Official Capacity, P.O. ALIRO PELLERANO, Shield No.
6108, Individually and in his Official Capacity, P.O.
MICHAEL POMERANTZ, Shield No. 10568,
Individually and in his Official Capacity, and P.O.
DAMON VALENTINO, Tax Id. No. 935896,
Individually and in his Official Capacity, and POLICE
OFFICERS "JOHN DOE" #1-10, Individually and in their
Official Capacity (the name John Doe being fictitious, as
the true names are presently unknown),

Defendants.
-----X

VERIFIED COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

Plaintiff KOWAN TURNER, by his attorneys, COHEN & FITCH LLP, complaining of
the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff KOWAN TURNER is an African American male and has been at all relevant times a resident of Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, DET. EDGARDO BARBOT, P.O. ALIRO PELLERANO, P.O. MICHAEL POMERANTZ, P.O. DAMON VALENTINO, and POLICE OFFICERS "JOHN DOE" #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about December 11, 2013, at approximately 11:20 a.m. in the County of Bronx, City, and State of New York, plaintiff KOWAN TURNER was inside of 2249 Morris Ave., Apt. A4, Bronx, New York.

9. At the aforesaid time and place, NYPD officers unlawfully entered 2249 Morris Ave., Apt. A4, accosted plaintiff, searched him, and then immediately placed him under arrest with his arms handcuffed tightly behind his back.
10. At no time on December 11, 2013, did defendants possess a valid warrant to enter and search 2249 Morris Ave., Apt. A4, Bronx, NY.
11. At no time on December 11, 2013, did exigent circumstances exist to justify the entry and search of 2249 Morris Ave., Apt. A4, Bronx, NY.
12. At no time on December 11, 2013, did defendants obtain valid consent to enter and search 2249 Morris Ave., Apt. A4, Bronx, NY.
13. At no time on December 11, 2013, did defendants possess probable cause to arrest plaintiff.
14. At no time on December 11, 2013, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.
15. Thereafter, plaintiff was transported to a nearby police precinct where he was subjected to an invasive strip search, placed in a holding cell, and charged with being a felon in possession of a weapon under 18 U.S.C. 922(g)(1).
16. At no time on December 11, 2013 did defendants possess probable cause to search and/or strip search plaintiff.
17. At no time did defendants possess the particularized suspicion necessary to justify an invasive strip search.
18. In connection with plaintiff's arrest, defendants falsely stated that they had obtained valid consent to enter the aforementioned residence, when in fact they did not have valid consent and instead relied on coercion to illegally and unlawfully enter said residence.

19. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office and/or the U.S. Attorney's Office. Specifically, defendants falsely stated that they had obtained valid consent to enter and search 2249 Morris Ave., Apt. A4, Bronx, NY and that they had obtained a valid search warrant for same, and that they had probable cause to arrest the plaintiff. Thereafter, defendants repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

20. In connection with plaintiff's arrest filled out false and/or misleading documents and/or affidavits in order to obtain a search warrant for 2249 Morris Ave., Apt. A4, Bronx, NY – namely, Defendant DAMON VALENTINO, falsely swore in an official document that he had personally knocked on the door of plaintiff's apartment on the morning of December 11, 2013, that he observed a lit, burning, cigarette emitting a distinctive odor that he believed to be marijuana and a quantity of white powdery substance next to plastic bags, which he believed to be cocaine. Thereafter, defendant DAMON VALENTINO repeated the aforementioned false and misleading information regarding the facts and circumstances surrounding the obtainment of said search warrant.

21. As a result of his unlawful arrest, plaintiff KOWAN TURNER spent approximately seven (7) months in custody and made numerous court appearances before he was released from custody on August 29, 2014 when United States District Judge Edgardo Ramos found that the aforementioned defendant police officers did not have probable cause or a valid search warrant to enter and search 2249 Morris Ave., Apt. A4, Bronx, NY, nor had they obtained valid consent for same.

22. Subsequently, on or about October 7, 2014, all charges against plaintiff were dismissed in their entirety.

23. As a result of the foregoing, plaintiff KOWAN TURNER sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, physical injury and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983 **DEPRIVATION OF FEDERAL RIGHTS**

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

25. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

26. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

27. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

29. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

31. Defendants created false evidence against plaintiff.

32. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's office and/or U.S. Attorney's Office.

33. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

34. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

35. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MALICIOUS PROSECUTION

36. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

37. Defendants misrepresented and falsified evidence before the Bronx County District Attorney and/or U.S. Attorney's Office.

38. Defendants did not make a complete and full statement of facts to the District Attorney and/or U.S. Attorney's Office.
39. Defendants withheld exculpatory evidence from the District Attorney and/or U.S. Attorney's Office.
40. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff KOWAN TURNER.
41. Defendants lacked probable cause to initiate criminal proceedings against plaintiff KOWAN TURNER.
42. Defendants acted with malice in initiating criminal proceedings against plaintiff KOWAN TURNER.
43. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff KOWAN TURNER.
44. Defendants lacked probable cause to continue criminal proceedings against plaintiff KOWAN TURNER.
45. Defendants acted with malice in continuing criminal proceedings against plaintiff KOWAN TURNER.
46. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.
47. Specifically, defendants' made the aforementioned false and misleading allegations regarding obtaining valid consent to enter and search plaintiff's apartment, obtaining a warrant, and the circumstances surrounding the illegal entry and illegal search of 2249 Morris Ave., Apt. A4, Bronx, NY.

48. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff's favor on or about October 7, 2014.

49. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
FALSE ARREST

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

51. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

52. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for her safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FIFTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
UNLAWFUL SEARCH AND SEIZURE

53. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

54. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

SIXTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
ILLEGAL SEARCH AND SEIZURE CONDUCTED PURSUANT TO AN INVALIDLY
AND ILLEGALLY OBTAINED SEARCH WARRANT

55. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

56. Plaintiff was subject to an illegal search and seizure pursuant to an invalid search warrant obtained with false and/or stale information.

57. Plaintiff was subject to an illegal search and seizure pursuant to an invalid anticipatory search warrant for which probable cause was lacking.

58. Plaintiff was subject to an illegal search and seizure pursuant to an invalid search warrant issued upon an affidavit containing false or recklessly inaccurate information and/or which omitted information upon which a judge would have concluded there was no probable cause for its issuance.

59. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MUNICIPAL LIABILITY

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

61. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

62. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

63. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

64. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

65. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

66. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

67. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

68. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

PENDANT STATE CLAIMS ARISING FROM THE DECEMBER 11, 2013 ARREST

69. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

70. On or about October 7, 2014 and within (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

71. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

72. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on February 5, 2015.

73. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

74. Plaintiff has complied with all conditions precedent to maintaining the instant action.

75. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ARISING FROM THE DECEMBER 11, 2013 ARREST
ASSAULT**

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

77. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

78. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ARISING FROM THE DECEMBER 11, 2013 ARREST
BATTERY**

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

80. Defendant police officers touched plaintiff KOWAN TURNER in a harmful and offensive manner.

81. Defendant police officers did so without privilege or consent from plaintiff.

82. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ARISING FROM THE DECEMBER 11, 2013 ARREST
FALSE ARREST**

83. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

84. Defendant police officers arrested plaintiff KOWAN TURNER in the absence of probable cause and without a valid warrant.

85. As a result of the aforesaid conduct by defendants, plaintiff KOWAN TURNER was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ARISING FROM THE DECEMBER 11, 2013 ARREST
FALSE IMPRISONMENT**

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

87. As a result of the foregoing, plaintiff KOWAN TURNER was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and humiliated and subjected to handcuffing and other physical restraints.

88. Plaintiff was conscious of said confinement and did not consent to same.

89. The confinement of plaintiff was without probable cause and was not otherwise privileged.

90. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ARISING FROM THE DECEMBER 11, 2013 ARREST
INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS**

91. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

92. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

93. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

94. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

95. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

96. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

**SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ARISING FROM THE DECEMBER 11, 2013 ARREST
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

97. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

98. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

99. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

100. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

**SEVENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ARISING FROM THE DECEMBER 11, 2013 ARREST
TRESPASS/UNLAWFUL ENTRY**

101. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

102. At the aforesaid time and place, defendants suddenly entered 2249 Morris Ave., Apt. A4, Bronx, NY without a valid warrant.

103. At the aforesaid time and place, the said defendants suddenly entered 2249 Morris Ave., Apt. A4, Bronx, NY without valid permission or consent of the plaintiff.

104. At the aforesaid time and place, no exigent circumstances existed to justify the entry and search of 2249 Morris Ave., Apt. A4, Bronx, NY

105. At the aforesaid time and place, the said defendants suddenly entered 2249 Morris Ave., Apt. A4, Bronx, NY in violation of the law.

106. At the aforesaid time and place, the said defendants unlawfully entered 2249 Morris Ave., Apt. A4, Bronx, NY and committed trespass.

107. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant, CITY OF NEW YORK.

108. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant, CITY OF NEW YORK.

109. Any joint and several liability of the defendants is not limited by CPLR 1601, by reason of the exceptions set forth in Article 16 of the CPLR.

110. By reason of the foregoing, the plaintiff, KOWAN TURNER, has been caused to suffer physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom, in a sum greater than the jurisdictional limits of the court.

**EIGHTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ARISING FROM THE DECEMBER 11, 2013 ARREST
MALICIOUS PROSECUTION**

111. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

112. On or about December 11, 2013, defendants commenced a criminal proceeding against plaintiff.

113. Defendants lacked probable cause to commence said criminal proceeding against plaintiff.

114. Defendants were motivated by actual malice in commencing said criminal proceeding against plaintiff.

115. From December 11, 2013 through October 7, 2014, plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants.

116. As a result of the malicious prosecution against him, plaintiff spent approximately eleven (11) months making court appearances.

117. On or about October 7, 2014, the criminal prosecution against plaintiff terminated in his favor and all charges against him were dismissed.

118. As a result of the aforementioned conduct, plaintiff suffered mental and physical injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and

- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
November 20, 2015

BY: _____/S_____
GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

JOSHUA FITCH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of **COHEN & FITCH, LLP** the attorneys for plaintiff **KOWAN TURNER** in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 November 20, 2015

_____/S_____
Joshua Fitch